UTILITARIANISM

By: Josille Marquez

UTILITARIANISM

- is an ethical theory that argues for the goodness of pleasure and the determination of right behavior based on the usefulness of the action's consequences.
- consequentialist
- claims that one's action or behavior are good inasmuch as they are directed toward the experience of the greatest pleasure over pain for the greatest number of persons.

THE PRINCIPLE OF UTILITY

- Jeremy Bentham in the book, An Introduction to the Principles of Morals and Legislation, argued that our actions are governed by two "sovereign matters" (pleasure and pain).

- Refers to the motivation of our actions as guided by our avoidance of pain and desire for pleasure.

- Pleasure is good if they produce more happiness than unhappiness. It is not enough to experience pleasure but to inquire whether things we do make us happier.

- Mill clarifies that what makes people happy is intended pleasure and what makes us unhappy is the privation of pleasure. Things that produce pleasure and happiness are good.

Mill's "Theory of Life" ; Natural Moral Preferability of Pleasure

- The pursuit for pleasure and avoidance for pain are not only important principles- they are in fact the only principle assessing an action's morality

ARE ALL PLEASURES NECESSARY AND ETHICALLY GOOD?

Jeremy Bentham

- Felicific Calculus is a common currency framework that calculates the pleasure that some actions can provide.

- Basis of intensity and strength of pleasure, duration or length of the experience of pleasure, certainty and uncertainty of the occurrence of pleasure, propinquity, remoteness or how soon there will be pleasure.

Two dimensions to consider:

- Fecundity or the chance it has of being followed by sensations of the same kind
- Purity or the chance it has of being followed by the opposite kind.

- When considering the number of persons being affected by pleasure or pain, another dimension is to be considered – extent.

- Pleasure and pain can only be quantitively differ from other experiences of pain and pleasure.

JOHN STUART MILL

- He thinks that the principle of utility must distinguish pleasures qualitatively rather than quantitatively.

- Utilitarianism cannot promote the kind of pleasures appropriate to pigs or to any other animals. There are higher intellectual or lower base pleasures. We are the higher intellectual and are capable of searching and desiring higher pleasures more than pigs are capable of.

- Human pleasures are qualitatively different from animal pleasures.
- Quality is more preferable than quantity.
- In deciding over two comparable pleasures, it is important to experience both and to discover which one is actually more preferred than the other.
- We prefer the pleasures that are actually within our grasp.

PRINCIPLE OF THE GREATEST NUMBER

- Utilitarianism is also about the pleasure that can be experienced by the greatest number affected by the consequences of our actions. It cannot lead to a selfish act.

- It is interested with everyone's happiness and similar from liberal social practices.

- Best consequence for the highest number of people.

IS IT JUSTIFIABLE TO LET GO OF SOME RIGHTS FOR THE SAKE OF THE BENEFIT OF THE MAJORITY?

JUSTICE AND MORAL RIGHTS

- Mill expounds that rights are related to the interest that serve general happiness.

- Our participation in the government and social interactions can be explained by the principles of utility. Mill associates utilitarianism with the possession of legal and human rights.

- Mill claims that it is morally permissible to not follow or violate an unjust law. In instances of conflict between moral and legal rights, Mill points out that moral rights take precedence over legal rights.

- Moral rights are only justifiable by consideration of greatest overall happiness.

- Mill's moral rights and consideration of justices are not absolute.

- Justice can be interpreted in terms of moral rights because justice promotes the greater social good.

SOURCE: Bulaong, Jr., O., et. al,. (2018). Ethics: Foundations of Moral Valuation. Rex Book Store, Inc.

NATURAL LAW

By: Ms. Josille Marquez

RELATED ISSUE:

- In October 2016, Pantaleon Alvarez, Speaker of the House of Representatives was intending to draft a bill which would amend the country's Family Code, allowing for the legalization of the same-sex unions.

- One newspaper report revealed that even before anything could be formally proposed, other fellow legislators had already expressed to the media their refusal to support this initiative.

- Reasons: Seeing two men kissing is unsightly. There is something IRREGULAR about belonging to the LGBT community. Relationship with the same sex is UNNATURAL.

THOMAS AQUINAS

- A Dominican friar who was the preeminent intellectual figure of the scholastic period of the Middle Ages.

- His "SUMMA THEOLOGIAE" is a voluminous work that comprehensively discusses many significant points in Christian theology.

- Centered at the Christian faith which is: we are created by God in order to ultimately return to him.

THREE PARTS OF AQUINAS' VOLUMINOUS WORK:

- Aquinas speaks of God. Acknowledging that our limited human intellect cannot fully grasp Him, we are able to say something about His goodness, might and His creative power.

- Deals with man or dynamic of human life which is characterized by our pursuit of happiness. Happiness which shouldn't rests ultimately on any particular good thing that is created by God but in the highest good which is God himself.

- Jesus as our savior. Salvation is only possible through the presence of God's grace.

SINCE THAT OUR CONCERN IS ETHICS, WE WILL BE FOCUSING ON THE SECOND PART OF AQUINAS' WORK WHICH DEALS WITH MAN OR DYNAMIC OF HUMAN LIFE WHICH IS CHARACTERIZED BY OUR PURSUIT OF HAPPINESS. HAPPINESS WHICH SHOULDN'T RESTS ULTIMATELY ON ANY PARTICULAR GOOD THING THAT IS CREATED BY GOD BUT IN THE HIGHEST GOOD WHICH IS GOD HIMSELF.

THE CONTEXT OF AQUINAS' ETHICS:

- **CHRISTIAN LIFE-** is about developing the capacities given to us by God into a disposition of virtue inclined toward the good.

- There is within us a CONSCIENCE (konsensya) that directs our moral thinking. There is a sense of right and wrong in us that we are obliged to obey. This sense must be informed, guided, and ultimately grounded in an objective basis for morality.

- We need a basis for our conscience to be properly informed. We need a clearer guidepost on whether certain decisions would lead into virtue or vice.

THE GREEK HERITAGE (TWO GREEK PHILOSOPHER THINKERS)

- NEOPLATONIC GOOD (Plato)

- ARISTOTELIAN BEING AND BECOMING (Aristotle)

NEOPLATONIC GOOD

- Plato who gave the notion of a supreme and absolutely transcendent good.

- God creates and thus He cares for, governs the activity of the universe and of every creature. (This idea which was centered in Christian faith has been shaped by the idea of Plato.)

- In his work "The Republic", Plato envisioned the ideal society specifically on providing an ideal basis on striving to be moral.

THE REPUBLIC

- Plato was trying to answer questions such as "Why should I bother trying to be good?" and "Why cannot 'good' be just whatever I say it is?"

- Plato's idea of the good becomes identified with One and the Beautiful.

- The ultimate reality is the ONENESS that will give rise to the multiplicity of everything else in the cosmos. All these beings have the single goal which is to return to that unity.

ARISTOTELIAN BEING AND BECOMING

- According to Aristotle, any particular being can be said to have four causes:

1. Any being we can see around is corporeal, possessed of a certain materiality or physical "stuff" which can be referred to as MATERIAL CAUSE. A being is unique individual being because it is made up of a particular "stuff". (Kung saan tayo gawa)

2. Material of any being takes on a particular shape so a bird is different from a cat which is also different from a man. The "shape" that makes a being a particular kind can be called its form or the so called FORMAL CAUSE. (It emphasizes uniqueness of every being. You wouldn't say that a cat is a cat if its shape or appearance looks like a cat.)

3. EFFICIENT CAUSE refers to something which brings about the presence of another being. Ex. A mango tree used to be a seed itself came from an older tree. (Example also is we came from our parents who also came from their parents)

4. FINAL CAUSE refers to the apparent end or goal. Ex. A seed to become a tree. (end or goal or purpose of any being)

HOWEVER, ARISTOTLE ALSO RECOGNIZED THE FACT THAT ALL BEINGS TEND TO UNDERGO ANY CHANGES AND THEREFORE DO NOT STAY AS IT IS FOREVER. THAT IS WHY ARISTOTLE ADDED ANOTHER PRINCIPLE WHICH IS THE POTENCY AND ACT.

POTENCY AND ACT

- Aristotle explained the process of becoming or the possibility of change that takes place in a being.

- A being may carry in itself certain **potentials** but these require being **actualized.** Ex. A puppy is not yet a full-grown dog. These potencies are being actualized as the puppy grows up and achieves what it is supposed to be. (You as a human being can also undergo into this change which can be applied in this principle. For example, you were born in a family who has an interest in photography art. There is a possibility that when you were still young, you adapted that interest. That interest can be considered as potential is latent to you and as you grow older, you actualized that interest and therefore act or strive to be a successful photographer in the future.)

SYNTHESIS

- God is that from which all beings come, it is possible for us to speak of Him as the first EFFICIENT CAUSE. God is that toward which all beings seek to return, it is possible for us to speak of Him as the FINAL CAUSE. It basically means that the end or goal of all beings is to return to him.

- According to Aquinas, "Only God in the fullness of His being and goodness is perfect; all other beings are participating in this goodness, and are good to that extent, but are imperfect since they are limited in their participation." It means that Beings are good because they are created by God but the goodness possessed by being remain imperfect.

SYNTHESIS

- Given the fact that only God's goodness is perfect and all beings that came from him are imperfect, God did not create us to simply be imperfect and to stay that way as He leaves us alone. God in his infinite or absolute wisdom directs how we are arrive to at our perfection. (Examples of this direction from God are the Ten Commandments and the teachings from the Bible.)

SOURCE: Bulaong, Jr., O., et. al,. (2018). Ethics: Foundations of Moral Valuation. Rex Book Store, Inc.

NATURAL LAW

THE ESSENCE AND VARIETIES OF LAW

ESSENCE

- As rational beings, we have FREE WILL. Through capacity of reason, human beings are able to judge between possibilities and to choose to direct our actions in one way or the other.

- Our actions are directed towards attaining ends or goods that we desire. However, just because we think that a certain end is good and it is therefore desirable does not necessarily mean it is indeed good. That is why it is important for REASON to always be part of the process.

- Acts are rightly directed toward their ends by reason. It is necessary to think carefully of what really is in fact good for us.

ESSENCE

- Aquinas reminds us that we cannot simply act in pursuit of our own ends of goods without considering other people's ends or goods since we are not isolated beings and do belong to a community. We have to consider what is good for the community as well as our own good or the so called **COMMON GOOD.**

- Since we must consider not only our own goods but also the ends or goods of the others, there would have to be some kind of measure to our own acts. We must recognize the proper measures or the limits in our actions that would lead to the ends or goods of ourselves and at the same time the others. This determination of the proper measures of our acts can be referred to **LAW**.

ESSENCE

- Example of law as limits or measures is the traffic rules. A motorist cannot just drive in any way he likes but must respect traffic rules. These rules which impose limits to a motorist is something that is good both for him and for the others as it helps to prevents motor accident.

- Therefore, a **LAW** is concerned with the **COMMON GOOD**. Making of law belongs to a public person or group of people who care for the common good or the concern for the good of the community or of the whole people.

- It is necessary for rules or laws to be communicated to the people involved in order to enforce them and to better ensure compliance. This communication refers to **PROMULGATION**.

VARIETIES OF LAW

ETERNAL LAW

- Aquinas writes " He (God) governs all the acts and movements that are to be found in each single creature, so the type of Divine wisdom, as moving all things to their due end, bears the character of law." This involves the assertion that Divine wisdom direct each being towards its proper end can be called **ETERNAL LAW**.

- **ETERNAL LAW** refers to what God wills for creation, how each participant in it is intended to return to Him. *Human beings* as rational, unlike animals and plants, *participates more fully and perfectly* given the capacity for reason.

- Irrational creatures such as *plants and animals* are participating in ETERNAL LAW although they are not conscious of this law. They are complying simply through their *instinctual following of their nature and moved by divine providence.*

NATURAL LAW

- Aquinas writes "Wherefore it has a share of Eternal Reason, whereby it has a natural inclination to its proper act and end: and this participation of the eternal law in the rational creature is called the NATURAL LAW.

- This simply means that human individuals as rational creature shares eternal reason as they participate in the eternal law which is part of what God's will. Human individual as a rational being has a natural inclination to these eternal law.

- Therefore, by looking at our human nature, at the natural inclinations given to us by God, we can determine the rule and measure that should be directing our acts. These rules and measures can be referred to NATURAL LAW.

HUMAN LAW

- This refers to all instances wherein human beings construct and enforce laws in their communities. According to Aquinas, one who have a basis for assessing the validity or invalidity of human law is whether or not in conforms to natural law.

- Meaning, human law should always conforms with the natural law in order to assess its validity. Natural law is general while human law is specific and more concrete to actual operation of human acts.

DIVINE LAW

- Instructions that can direct us to supernatural end. Supernatural end refers to more complete happiness that surpasses human nature and can be obtained through the power of God alone.

- This law refers specifically to instances where we have instructions that come from divine revelation. Ex. What is handed to us by sacred Scriptures such as the Ten Commandments.

- This is different from eternal law because it simply tell that there is a divine wisdom that directs each beings or creature. Divine Law has written revelation that can be found in say for example Gospels.

DIFFERENCES OF FOUR:

- ETERNAL LAW- there is a **divine wisdom** that directs our acts.
- NATURAL LAW- it is the **natural inclination** of human beings to eternal law as they participate on it.
- HUMAN LAW- the **more specific or more concrete to human acts**.
- DIVINE LAW- instructions coming from **divine revelations** (gospels, Ten Commandments.)

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SPECIFICS CONCERNING NATURAL LAW

By: Ms. Josille Marquez

THE NATURAL LAW

- Summa Theologiae 1-2 , Question 94, Article 2 by Thomas Aquinas

- Order of the precepts of Natural Law is according to the order of natural inclinations. Below are examples of order of natural inclination of man that are also associated to the precepts of Natural law.

- First, every substance seeks the preservation of its own being, second, there is in man an inclination to things that pertain to him more specially, according to that nature which he has in common with other animals. (sexual intercourse or the care of one's offspring)Third, there is in man an inclination to good, according to the nature of his REASON. Therefore, man has a natural inclination to know the truth about God, and to live in society. (Example is to avoid ignorance and avoid offending those among whom one has to live.

IN COMMON WITH OTHER BEINGS

- Aquinas identifies nature of man which is common to other beings. This is the desire to ***preserve one's own being***.

- A makahiya leaf folds inward and protect itself when touched. A cat tries to run away when it feel threatened. Similarly, humans have their own way of preserving their lives.

- Since preservation of life is in line with Natural law, taking one's life is therefore against to it. Murder, therefore is against Natural law. Acts that promote the continuation of life are to be lauded as ethical because they are in line with the Natural law.

IN COMMON WITH OTHER ANIMALS

- Aquinas stated that there are desires wherein we, humans are in common with other animals such as ***the desire to sexual intercourse and the care of one's offspring***. Animals periodically engage in sexual intercourse at a specific time of "heat" which could result to offspring just like how human beings have natural inclination to engage in sexual act and to reproduce.

- However, the *connection between the sexual act or engaging in a sexual intercourse and fecundity or producing offspring becomes problematic.* One issue arose is the acceptability or unacceptability of abortion in Natural law. From the precepts of Natural law, every substance must preserve their beings, therefore the act of preventing a new life is unacceptable.

UNIQUELY HUMAN

- Humans have inclination to good according to the nature of our reason. This natural inclination is to know the truth about God and to live in society. Examples given are to shun ignorance and to avoid offending those people with whom one lives. Therefore, act of deception or fraud would be unacceptable to Aquinas.

- Aquinas does not go into details enumerating what specific actions would be ethical or unethical. He only gave general guideposts: the epistemic concern (we know we pursue the truth) and the social concern (we know we live in relation to others). The question of what particular acts to pursue or not is something that we have to determine for ourselves through the use of **REASON**.

UNIQUELY HUMAN

- Reason is the defining part of human nature. We need to recognize that while our other inclinations are good, what is means to be HUMAN is, precisely to EXERCISE OUR REASON in our consideration of how the whole self should be comported toward the good.

- Human is rational. Humans should take up the burden of thinking carefully how a particular act may or may not be a violation of our nature. Humans must think carefully about how their acts would either contribute to or detract from the common good.

SUMMARY

- Natural law is instrumental to ethics and is rooted to Christian faith.

- Our own objective to ethics is our own natural inclinations. Since these natural inclinations are given by God, they provide the path towards perfection.

- Natural inclinations as enumerated by Aquinas include the desire to preserve our being (which is common with other beings including plants), the sexual acts and its fecundity (in common with animal beings) and lastly is our use of reason (which is uniquely human.)

SOURCE: Bulaong, Jr., O., et. al,. (2018). Ethics: Foundations of Moral Valuation. Rex Book Store, Inc.